IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-511

CP (CAA) No.-01/230/232/ND/2023

IN THE MATTER OF:

BCC Edutech Pvt Ltd. & Anr. With Conscient Infrastructure Pvt. Ltd. **....Applicant**

SECTION

U/s 230-232 **Order delivered on 10.05.2023**

CORAM:
SHRI MAHENDRA KHANDELWAL,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Mr. Sandeep Bhuraria, Mr. Monish Surendram, Ms Nishtha Grover, Advs.
For the Respondent	:
For the IT Deptt.	: Mr. Sanjay Kumar, Ms. Easha Kadian, Ms. Hemlata Rawat
For the OL	: Ms. Hemlata Rawat, Mr. Aayushmaan Vatsyayana
For the RD	: Ms. Niharika Tanwar, Adv.

ORDER

Heard the submissions made by Ld. Counsel for the Petitioner. Proxy Counsels for the RD, OL and Income Tax Department are present. Proxy counsel for the Income Tax Department has stated that they have filed the report in respect of all the three companies. However, the same is not reflected on the e-portal of the Tribunal. Proxy counsel for the Income Tax Department is directed to approach the Registry for reflecting the same on the e-portal of the Tribunal. On instructions, he stated that there are demands against the transferee company to the tune of Rs. 2.96 crore. Ld. Counsel for the Petitioner stated that he will file an affidavit cum undertaking to the effect that if the

demand is finalized against the transferee company by the Appellate Authorities, the said tax dues shall be paid by the transferee company. One week's time is granted for filing the same. List the matter on **24.05.2023.**

S/d-
(DR. BINOD KUMAR SINHA)
MEMBER (T)

S/d-
(MAHENDRA KHANDELWAL)
MEMBER (J)

Amit Tiwari
10.05.2023